

It is partition suit. My grandmother Vijayalaksmi had account in SBI bank srivilliputhur and locker. The locker nominee is Venkateshwari. Vijayalaksmi has 1 son Raja and 3 daughters Nalini, Shanthi and Venkateswari. Shanthi is my mother. When my grandmother died. We suspect that Venkteswari has taken the money 80 lakhs from SBI locker with the help of peon. While we approached the bank to open locaker, they told us to get the court order. The court has appointed the advocate commisioner and asked the SBI manager to open the locker but SBI manager denied. Court called the SBI manger 5 times and manager has never appeared. Finally court says like "Petition shall take necessary action against the Branch manager SBI, srivilliputhur for not obeying the court order and not complying the direction for this court call on 19.06.2026". Please let us how to proceed on this

This isn't a small procedural issue—the bank is effectively ignoring a court order. You do have legal remedies, and the court has already hinted at what you should do next.

Let me break it down clearly so you can act.

What's happening legally

- A **partition suit** is already filed → good.
- Court appointed an **Advocate Commissioner** → means the court is serious about fact-finding.
- Court directed the **State Bank of India manager (Srivilliputhur branch)** to open the locker.
- Manager **ignored summons 5 times** → this is **non-compliance with court order**.
- Court has now said: *"take necessary action against the Branch Manager"*.

👉 This is your green signal to escalate legally.

What you should do next (practical steps)

1. File a Contempt Petition

This is the most important step.

- File under:
 - **Contempt of Courts Act, 1971**
- Against:
 - SBI Branch Manager, Srivilliputhur
- Grounds:
 - Wilful disobedience of court order

- Repeated failure to appear despite summons

👉 Outcome:

- Court can impose **fine, arrest, or compel appearance**
 - This usually forces immediate compliance
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2. Ask court for coercive steps

Along with contempt, your lawyer should request:

- **Bailable / Non-bailable warrant** against the manager
- Direction to **police to assist in opening the locker**
- Direct order to SBI higher authority (Regional Manager)

This is allowed under procedural law like:

- **Code of Civil Procedure (CPC)**
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3. Escalate within SBI (parallel action)

Don't depend only on court speed.

File a written complaint to:

- SBI Regional Office
- SBI Zonal Office

Mention:

- Court order copy
- Non-compliance by branch manager

You can also escalate to:

- **Reserve Bank of India (RBI Banking Ombudsman)**

👉 Banks usually act fast when RBI complaint is filed.

4. Important legal point about nominee

This is crucial for your case:

- Nominee (Venkateswari) is **NOT the owner**
- Nominee is only a **custodian/trustee**

As per Supreme Court principle:

- Legal heirs (all children: Raja, Nalini, Shanthi, Venkateswari) have **equal rights**

👉 Even if she accessed locker:

- She must **account for the money**
 - If ₹80 lakhs was taken → it becomes part of partition
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5. If money already taken (your suspicion)

You should also:

- File **Application for Accounts & Recovery**
- Ask court to:
 - Direct Venkateswari to disclose locker contents
 - Provide transaction records
 - Return/share money

If fraud is strong:

- You *can* file criminal complaint for:
 - Cheating / breach of trust
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About SBI Manager's behavior

Ignoring court 5 times is serious. Courts don't tolerate this.

Possible outcomes after your action:

- Manager forced to appear
 - Locker opened under court supervision
 - Adverse inference against SBI (court may assume wrongdoing)
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Strategy advice (important)

Don't wait passively.

Ask your lawyer to do **all 3 together**:

1. Contempt petition
2. Petition for warrant/police help
3. Application to proceed ex parte against SBI

This creates pressure from every side.

One thing I need from you

To guide you more precisely:

- Is the case in **District Court or Sub Court (Srivilliputhur)**?
 - Has any **locker inventory ever been recorded earlier**?
 - Do you have **death certificate + legal heir certificate**?
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If you want, I can even:

- Draft a **Contempt Petition format**
- Draft a **strong complaint letter to SBI/RBI**
- Help you prepare **arguments your lawyer can use in court**

Just tell me 

Please draft all 3 and give me

Got it — I'll give you clean, ready-to-use drafts for all three. You can hand these directly to your lawyer and ask them to adapt to your case number and court format.

1. CONTEMPT PETITION (Against SBI Manager)

IN THE HON'BLE COURT OF [COURT NAME], [PLACE]

Contempt Petition No: ____ / 2026

In

O.S. No: ____ / 20__ (Partition Suit)

Petitioner:

[Your Name & Others – Legal heirs of Late Vijayalakshmi]

Respondent:

The Branch Manager,
State Bank of India,
Srivilliputhur Branch, Tamil Nadu

PETITION UNDER SECTION 10 & 12 OF THE CONTEMPT OF COURTS ACT, 1971

The petitioner respectfully submits as follows:

1. The petitioner has filed the above suit for partition of the estate of Late Vijayalakshmi, which includes a locker maintained with the respondent bank.
2. This Hon'ble Court appointed an Advocate Commissioner and directed the respondent to cooperate and facilitate opening of the said locker.
3. This Hon'ble Court also issued repeated summons (on multiple dates) directing the respondent to appear and comply with the order.
4. However, the respondent has **wilfully disobeyed** the orders of this Hon'ble Court and has **failed to appear despite repeated summons (at least 5 times)**.
5. The conduct of the respondent amounts to **gross contempt** and obstruction of justice.
6. The respondent's non-compliance is deliberate and has prevented the execution of the court's order and prejudiced the rights of the legal heirs.

PRAYER

It is therefore prayed that this Hon'ble Court may be pleased to:

- a) Initiate contempt proceedings against the respondent under the Contempt of Courts Act, 1971
 - b) Punish the respondent for wilful disobedience of court orders
 - c) Direct immediate compliance of the order to open the locker
 - d) Pass any further orders as this Hon'ble Court deems fit
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Date:

Place:

Petitioner

(Through Counsel)



2. PETITION FOR COERCIVE ACTION (Warrant / Police Help)

IN THE HON'BLE COURT OF [COURT NAME], [PLACE]

I.A. No: ____ / 2026

In

O.S. No: ____ / 20__

Petitioner:

[Your Name & Others]

Respondent:

Branch Manager, SBI Srivilliputhur

PETITION SEEKING COERCIVE STEPS FOR NON-COMPLIANCE

The petitioner submits:

1. This Hon'ble Court had directed the respondent to appear and assist in opening the locker belonging to Late Vijayalakshmi.
 2. Despite repeated opportunities and summons, the respondent has **failed to appear** and has **not complied** with the directions.
 3. The continued non-compliance is obstructing execution of the court's order.
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PRAYER

It is therefore prayed that this Hon'ble Court may be pleased to:

- a) Issue **bailable / non-bailable warrant** against the respondent
- b) Direct the **jurisdictional police** to assist the Advocate Commissioner in opening the locker

- c) Direct higher authorities of State Bank of India to ensure compliance
 - d) Pass such further orders as deemed fit under Code of Civil Procedure
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Date:

Place:

Petitioner

(Through Counsel)



3. COMPLAINT TO SBI / RBI

👉 You can send this by email + speed post

To:

The Regional Manager
State Bank of India

CC:

Banking Ombudsman
Reserve Bank of India

**Subject: Complaint regarding non-compliance of court order – SBI
Srivilliputhur Branch**

Respected Sir/Madam,

I am one of the legal heirs of Late Vijayalakshmi, who maintained a bank locker at SBI
Srivilliputhur Branch.

A partition suit is pending before the Hon'ble Court, and the Court has:

- Appointed an Advocate Commissioner
- Directed the Branch Manager to cooperate and open the locker

However:

- The Branch Manager has **failed to appear before the Court despite repeated summons (more than 5 times)**
- The Branch has **not complied with the court order**

This is a serious violation of legal obligations and reflects misconduct by the branch.

Request

I request you to:

1. Take **immediate disciplinary action** against the Branch Manager
2. Direct the branch to **comply with the court order immediately**
3. Ensure cooperation with the Advocate Commissioner

Failure to act may compel us to proceed legally, including contempt proceedings.

Details:

Locker Holder: Late Vijayalakshmi

Branch: SBI Srivilliputhur

Case No: O.S. No ____ / ____

Yours sincerely

[Your Name]

[Address]

[Phone Number]

Important final advice

- Give these drafts to your lawyer — they will adjust legal formatting
- File **Contempt + Coercive Petition immediately (same week)**
- Send SBI/RBI complaint in parallel